CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, January 23, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, January 23, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Joseph L. Kelley, Commissioner Alvin Burke, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Vincent Brown, and City Clerk Joanna Flores.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

The following items were pulled from the Consent Agenda to be discussed separately under Action Items: pulled 13-1 and 13-4 (Commissioner Burke).

NEW ITEMS:

A request was made to amend the agenda as follows:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A PRO BONO RETAINER AGREEMENT WITH STEPHAN HUNTER JOHNSON OF LYDECKER, DIAZ; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above title was read by City Clerk Flores.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to amend the agenda to include the above resolution as item 14-1.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A PRO BONO RETAINER AGREEMENT WITH STEPHAN HUNTER JOHNSON OF LYDECKER, DIAZ; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above title was read by City Clerk Flores.

It was moved by Commissioner Kelley, seconded by Commissioner Burke to amend the agenda to include the above resolution as item 14-2.

There being no discussion, the motion to amend the agenda passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

7. APPROVAL OF AGENDA:

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – December 12, 2018

It was moved by Commissioner Kelley, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of December 12, 2018.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara Jordan's Office, District I, announced that the Mom and Pop Program for District I is available now and can be picked up at the District office or at Neighbors and Neighbors; he encouraged all small businesses to apply.

Commissioner Kelley thanked Commissioner Jordan for having staff come out to the meeting the other day and provide insight.

Commissioner Burke said the old Jackson Hospital looks like an eyesore and needs to be maintained since it is on one of the main thoroughfares.

Mr. Gardner said he will relay the information to Commissioner Jordan.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Eric Redmon, Villa Francine, 2766 NW 131st Street, Opa-Locka, FL, said the open lot that they do not own is a mess and needs to be cleaned up. The property has been cited numerous times and something needs to be done. The lawsuit that was served on December 10, 2018 has not been responded to and he thought a motion to dismiss would have been submitted by now. It is nothing personal to Mr. Daughtrey, but the City needs to respond to this as soon as possible.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said she does not recall the add-on for the attorney being on today's agenda, however, she agrees with them providing pro bono services. The agreement should be done in writing to protect the City. The residents have been complaining about receiving parking tickets when they have been parking in the same space for years. The police department needs to do their jobs the correct way.

Mayor Pigatt asked that the concerns raised by the citizens be addressed in a timely manner.

12. ACTION ITEMS:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO NEGOTIATE A PROFESSIONAL SERVICES CONTRACT WITH AMERICAN TRAFFIC SOLUTIONS (ATS), DOING BUSINESS AS VERRA MOBILITY, IN FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Commissioner Burke asked if the contract had to be for five (5) years.

Acting City Manager Daughtrey said that is the timeframe the company presented, but the contract can be negotiated if need be.

Commissioner Kelley proposed amending the item and lowering the timeframe because he agrees that it is too long. He asked what additional technology would come with the return of the cameras.

Acting City Manager Daughtrey said there is a better price at this time and the cameras have been updated to continue assisting with the solving of crimes in the areas.

Vice Mayor Davis said that tough decisions have to be made and there are people present at the meeting that has been affected by the red camera lights. However, the City needs to pay the debt owed to the company and the state and this will be done by reinstating the program.

City Attorney Brown asked the representative from ATS to come before the commission. He asked him about the mobile trailers that are currently being utilized by the City of Miami Gardens.

Orlando Torres, ATS, said the trailers are being used today to assist with providing traffic solutions. The trailers can be moved and setup in areas around the City as needed.

City Attorney Brown asked if there is a cost associated with this.

Mr. Torres said there is no cost for this and it is included in the contract.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

2 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE ISSUANCE OF AN RFP FOR ROOFING SERVICES AND INTERIOR AND EXTERIOR REMODELING; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

The above resolution was read by City Attorney Brown.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Burke asked the manager what facility needed roofing services.

City Manager Daughtrey said the roof on the Cultural Arts center needs to be repaired and the funds come from the Greater Miami CDBG funds.

Vice Mayor Davis said looking at the documents, it does not outline what building the funds are for. He asked for clarity on what the resolution will cover under the reconstruction and rehabilitation because the tot lot needs to be upgraded as well.

City Attorney Brown said the item is drafted in the manner that it is given to his office. The manager can make a friendly amendment to the item at any time and this can be updated on the RFP.

Vice Mayor Davis asked what the building will be used for once it is rehabilitated.

Acting City Manager Daughtrey said there will be funds included in the upcoming budget for the next fiscal year to provide for staffing and services.

Vice Mayor Davis asked the manager if he will accept his friendly amendment.

Acting City Manager Daughtrey accepted the amendment.

Commissioner Kelley said he agreed with the vice mayor and went on to say that the Cultural Arts Building was similar to the Caleb Center Building and he would like to see it flourish again.

Mayor Pigatt said a workshop was organized to receive citizens input regarding the use of the building. He questioned the spending of a half of a million dollars when there is no use for it at this time. He will support it, but wants to make sure it will be properly utilized.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

13. CONSENT AGENDA:

1 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO XETTLE, SATISFY AND EXECUTE LIEN RELEASES IN MITIGATION FO CODE ENFORCEMENT LIENS ON PROPERTY LOCATED AT 2081 YORK STREET, OPA-LOCKA, FLORIDA, IN THE AMOUNT OF $16,793.06; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON THE FLORIDA SHERIFF'S ASSOCIATION CONTRACT FSA18-VEH16.0, WITH RECHTIEN INTERNATIONAL TRUCKS, INCFOR A THREE-YEAR LEASE PURCHASE OF A 2019 MV607 WITH POTHOLE PATCHER IN AN AMOUNT NOT

TO EXCEED ONE HUNDRED EIGHTY EIGHT THOUSAND ONE HUNDRED DOLLARS ($188,100.00), IN A FORM ACCEPTABLE TO THE CITY ATTORNEY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

3 (13-5). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE ISSUANCE OF A REQUEST FOR PROPOSALS ("RFP") FOR COMMERCIAL SOLID WASTE PROVIDERS, INCLUDING LANGUAGE THAT PROHIBITS ANY COMPANY FROM BIDDING THAT IS CURRENTLY INVOLVED IN LITIGATION AGAINST THE CITY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

4 (13-6). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RETROACTIVELY AUTHORIZING THE BROWN LAW GROUP, LLC, TO REPRESENT THE CITY OF OPA-LOCKA IN HOLMES VS. CITY OF OPA-LOCKA, FLORIDA, CASE NUMBER 2018-42660 CA 01; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Attorney*

The above resolutions were read by Attorney Brown.

It was moved by Commissioner Kelley, seconded by Vice Mayor Davis to pass the resolutions.

The motion on the resolutions passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

14-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE A PRO BONO RETAINER AGREEMENT WITH STEPHAN HUNTER JOHNSON OF LYDECKER, DIAZ; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Mayor Pigatt*

The above title was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing.

Eric Redmon, Villa, Francine, Opa-locka, FL, said the City does need guidance in this area. His first impression is that it was not needed, but due to the fact that there is a new commission, he believes they will benefit from it.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, asked what exactly will this attorney be doing because she has not seen any of the paperwork. She hopes her question will be answered as this is a concern.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis for discussion.

Commissioner Kelley said that there needs to be documentation of everything discussed at the meeting

Commissioner Kelley asked for clarity on the item and how is the next step going to work.

Mayor Pigatt said the item is to make Mr. Johnson the attorney solely for this item.

Vice Mayor Davis said given the fact that the legal fees are increasing, it is welcomed that an attorney would step in and offer assistance to the City for free.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

14-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REQUESTING THAT THE STATE OF FLRIDA FINANCIAL OVERSIGHT BOARD PROVIDE TECHNICAL STAFFING SUPPORT TO THE CITY OFOPA-LOCKA FINANCE DEPARTMENT TO ASSIST WITH THE PENDING AUDITS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

The above title was read by City Attorney Brown.

Mayor Pigatt opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, gave kudos to the commission for requesting help from the state with this matter. She said she hopes it will be beneficial so the audits can be completed once and for all.

It was moved by Commissioner Kelley, seconded by Commissioner Burke for discussion.

Commissioner Kelley said that it was stated in the previous meeting with the county that the City needs help with completing the audits.

Vice Mayor Davis agreed with the commissioner, but voiced his concern about there not being enough information on what exactly it is that the City would like for the state to do and if there is a cost associated with it.

Commissioner Kelley said that state is always asking if the City needs assistance with anything and he wants to take advantage of this opportunity. There is no cost associated with this request for assistance.

There being no further discussion, the motion on the resolution passed by a 5-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Yes
Commissioner Bass	Yes
Mayor Pigatt	Yes

15. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

C. RESOLUTIONS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey said State Representative James Bush submitted four (4) items to the Legislature on behalf of the City and bill numbers have been provided for them; hopefully the representative will bring funds into the City. They will soon have the machine to fill the potholes and provide relief to residents in certain areas in the City.

Commissioner Burke said he received a call from one of the business owners on 147th Street. The whole area needs to be repaved as they are some of the worst streets in the City. He asked the manager to keep that area in mind. The OLPD is passing out tickets to residents unfairly and it is not right; he asked the manager to look into the situation.

Commissioner Kelley asked the manager for a report on the police body cameras, the gym floor at Sherbondy Park, and the requests made by the Public Works Department.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

Vice Mayor Davis announced a tenant's association meeting tomorrow at Glorietta gardens Apartments at 6:30 p.m. to discuss tenant's issues.

Commissioner Kelley thanked everyone for attending the MLK Walk on this past Saturday as it was a success. He also thanked Pastor Mikell for providing the refreshments and Pastor

Roundtree for the use of their parking lot. He and Commissioner Burke hosted Farm Share this month and he hopes he will be able to bring it back every month as it is beneficial to the residents; Meet Me Monday is held every month somewhere in the City; Walk-In Wednesday is held every Wednesday and everyone is welcomed to visit his office with their issues or concerns; and he is working with Dr. Steve Gallon to bring the next Conversation on Education to the City.

Mayor Pigatt thanked Vice Mayor Davis for coordinating the tenants meeting over in the Gardens Apartments. He also recognized Commissioner Kelley for all of his community outreach programs that he hosts in and around the City; he is happy his colleagues are being active on behalf of the community.

20. OFFICIAL BOARD APPOINTMENTS:

Vice Mayor Davis appointed Eugene Stanley to serve on the Housing Authority Board.

City Attorney Brown announced an attorney/client session to be held on Wednesday, January 30, 2019 at 5:00 p.m. to discuss pending litigation involving the City. He went on to read each case to be discussed at the Executive Session on January 30, 2019.

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Commissioner Kelley to adjourn the meeting at 8:22 p.m.

MAYOR

ATTEST:

CITY CLERK